



Notification Waiver Determination

Autopact – Freehold interest in commercial land in Dubbo, NSW

Acquisition	Autopact Property No. 3 Pty Ltd applied for a notification waiver in respect of its proposed acquisition of a 100% freehold interest in commercial land at 59–71 Victoria Street, 10 North Street, 23 Bruce Avenue and 49 Victoria Street, Dubbo NSW (the Properties) from Peter Terry Nominees Pty Ltd (the Vendor), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	18 June 2026

Parties to the Acquisition	The acquirer, Autopact Property No. 3 Pty Ltd, is a wholly owned subsidiary of Autopact Holdings Pty Ltd (together, Autopact). Autopact operates motor-vehicle dealerships across Queensland, New South Wales and Victoria, supplying new and used vehicles, finance and insurance, and servicing and parts. The Properties are currently leased to PT Western Plains Pty Ltd, another wholly owned subsidiary of Autopact Holdings Pty Ltd and connected entity of the acquirer, which operates a motor-vehicle dealership at the Properties. The lease terms extend to 2031. The Vendor is a land-holding entity that does not itself supply vehicles, finance, servicing or parts, and does not operate any motor-vehicle dealership.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no horizontal competitive overlap b. Autopact has been using the land as a lessee and intends to continue using the land for the same purposes, but as an owner c. the Acquisition does not appear likely to otherwise limit or prevent competition from rivals.

	In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act